

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #10	CCRB Case #: 202001228	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/12/2020 10:30 PM	Location of Incident: East 163rd Street toward Southern Boulevard	Precinct: 41	18 Mo. SOL 8/12/2021	EO SOL 3/29/2022	
Date/Time CV Reported Thu, 02/13/2020 1:00 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/13/2020 1:00 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Paul Cruz	09838	965018	041 PCT
2. SGT Gregory Kennedy	03102	948364	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Paul Cruz	Abuse: Police Officer Paul Cruz refused to provide his name to § 87(2)(b)	
B.POM Paul Cruz	Abuse: Police Officer Paul Cruz refused to provide his shield number to § 87(2)(b)	
C.SGT Gregory Kennedy	Abuse: Sergeant Gregory Kennedy refused to provide his name to § 87(2)(b)	
D.SGT Gregory Kennedy	Abuse: Sergeant Gregory Kennedy refused to provide his shield number to § 87(2)(b)	

Case Summary

On February 13th, 2020, at 1:00 a.m., § 87(2)(b) filed the following complaint online on the CCRB website on behalf of himself.

On February 12, 2020, at approximately 10:30 p.m., in the vicinity of East 163rd Street toward Southern Boulevard in the Bronx, § 87(2)(b) was pulled over in his vehicle by PO Cruz and Sgt. Kennedy of the 41st Precinct. § 87(2)(b) was issued two summonses, one for an obstructed driver's view (**Board Review 11**). At the end of the vehicle stop, § 87(2)(b) asked PO Cruz and Sgt. Kennedy for the names and shield numbers, which they allegedly did not provide (**Allegations A, B, C, D: Abuse of Authority – Refusal to provide name, Refusal to provide shield number**, § 87(2)(g)). No arrest was made.

Body-worn camera footage was obtained from the incident (**BRs 01 - 04**). Relevant portions will be discussed below. A BWC video from PO Cruz was also provided depicting § 87(2)(b) later at the 41st Precinct stationhouse. This video does not depict any FADOs and does not capture the audio of any conversation between § 87(2)(b) PO Cruz, and Sgt. Kennedy (**BR 12**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Paul Cruz refused to provide his name to

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Paul Cruz refused to provide his shield number to § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Gregory Kennedy refused to provide his name to

§ 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Gregory Kennedy refused to provide his shield number to § 87(2)(b)

While in his intake statement he provided their names, Sgt. Kennedy's shield number and PO Cruz's Tax Registry number (**BR 05**), in his phone and verified statements (**BR 06 and 07**) § 87(2)(b) stated that PO Cruz and Sgt. Kennedy did not give him enough time to write down their information at the end of the vehicle stop.

§ 87(2)(g)

On PO Cruz's second body-worn camera footage, which depicts the interaction at the end of the vehicle stop, (**BRs 01, 04**), at the 1:23 minute mark, PO Cruz stands in front of § 87(2)(b) and says to § 87(2)(b) "9838, Officer Cruz. It's on there." and gestures to the summonses.

On Sgt Kennedy's body-worn camera footage (**BRs 01, 02**), At 25:20, PO Cruz is heard saying "9838" twice. § 87(2)(b) exits his vehicle and begins arguing with PO Cruz and Sgt. Kennedy. At 26:05, § 87(2)(b) says, "I need your badge number." Sgt. Kennedy says, "My name is Sgt. Kennedy, 41 Precinct, 3102." § 87(2)(b) says, "I'm not ready" and is looking at his phone while Sgt. Kennedy speaks. Sgt. Kennedy repeats his name and shield number, and § 87(2)(b) continues to yell "I'm not ready" repeatedly while Sgt. Kennedy is speaking. Sgt. Kennedy finally says, "Have a good night." and walks back to his vehicle.

PO Cruz's first BWC video of the vehicle stop (**Board Review 01 and 03**) captured § 87(2)(b) say, "Wait a minute..." as the video ends. The video did not capture § 87(2)(b)'s request for the officers' names and shield numbers.

PO Cruz and Sgt. Kennedy are heard on video providing their names and shield numbers to § 87(2)(b) twice and PO Cruz also says that his identification information is on the summons issued to § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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Civilian and Officer CCRB Histories

- This is the first CCRB in which § 87(2)(b) has been a party (**BR 08**).
- PO Cruz has been a member of service for three years and has been a subject of two CCRB complaints and five allegations, none of which have been substantiated.
- Sgt. Kennedy has been a member of service for eleven years and has been a subject of ten CCRB cases and 35 allegations, two of which were substantiated.
 - 201403575 involved force (chokehold), refusal to provide name/shield, and offensive language (race) allegations which were unsubstantiated, and retaliatory summons and stop allegations which were substantiated. For the retaliatory summons allegation, the Board recommended Command Discipline B and the NYPD enforced Command Discipline A. For the stop allegation, the Board recommended Command Discipline B and the NYPD chose no disciplinary action.

Mediation, Civil and Criminal Histories

- § 87(2)(b) the sole complainant and victim, declined mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- On April 1, 2021, a FOIL request for any Notice of Claim regarding this incident filed with the Office of the Comptroller came back negative (**BR 10**).

Squad No.: 10

Investigator:	<u>Carter Garfield</u>	<u>Inv. Garfield</u>	<u>4/6/21</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Eric Rigie</u>	<u>IM Eric Rigie</u>	<u>4/9/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date